

CONTROLLED UNCLASSIFIED INFORMATION

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at DAFFARS 5302.101? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☒ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: OO-ALC/ PZABA

Purchase Request (if available) / Local ID Number: FD20202600475

Program / Project (and PE, if applicable): T-38 TCTO PROGRAM TO REPLACE WINGTIPS

Program Type (PEO, Enterprise, of Operational): Enterprise

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ 6,500,000.00 J&A Type: ☐ Class ☒ Individual

COORDINATION (DAFFARS 5306.304(a))

[Sign and Save Procedure](#)

** The text in the signature blocks below is editable, including the title.

** To remove a row, click the "X" next to the signature block. **CAUTION:** Once removed, it can only be restored by downloading the [BLANK FORM](#) again.

Date 04 Mar 2026	YOLY TOVAR, USAF T-38 Wing Program Manager 416 SCMS/ GUEAB DSN: 777-9406	Signature	X
Date 04 Mar 2026	Local Legal Reviewer Michael D. Bassett 75 ABW/JA (801) 586-4191	Signature	X

APPROVAL (DAFFARS 5306.304(a))

Date 04 Mar 2026	LESLIE G. EVANS, USAF Procurement Contracting Officer OO-ALC/PZABA DSN: 586-3964	Signature
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I. Agency and Contracting Activity.

United States Air Force (USAF)
OO-ALC/PZABA
6050 Gum Lane, BLDG 1215
Hill AFB, UT 84056

II. Nature and/or description of the action being approved.

This is the final buy for the T-38 wingtips to support the Time Compliance Technical Order (TCTO) to upgrade the entire fleet of T-38s with new configuration of wings and wingtips. For the past 15 years the USAF has incrementally purchased the new configuration of wingtips IAW the TCTO schedules from the designer, Northrup Grumman Corp. (NGC) CAGE Code 79U29 sole sourced because the USAF does not own the drawings. The upgrade is nearly complete and this will be the last buy.

III. Description of supplies/services required to meet agency needs.

T-38 Wingtips, Right-Hand (RH) NSN 1560-01-527-2195XE and Left-Hand (LH) NSN 1560-01-527-2194XE. The quantity funded is for 64 each of the RH and 66 each of the LH. As part of the last buy, the program team also needs 7 each of the RH and therefore, these will be an option quantity and will be exercised once more funds are received.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

Northrup Grumman Corp. developed and owns the drawings for the new configuration of the T-38 wingtips to fit the new configuration of the T-38 wings.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A Sources Sought Synopsis# FA8212-26-R-0003 on SAM.gov for 33 days to seek new sources and to verify that no other sources owns the drawings or can meet the USAF requirement. The posting dates were from 01/15/2026 to 02/18/2016. Only NGC responded to the synopsis and stated that they can meet the USAF requirement to deliver 7 each per month of the RH and LH starting in May 2027.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer anticipates fair and reasonable price because the contract type will be Firm-Fixed Price. This is because the requirement is well defined and there is no uncertainty that NGC can meet the USAF requirement. The Contracting Officer anticipates fair and reasonable pricing by keeping the profit down and the cost down by a) not awarding from DLA's BOA that resulted in the USAF paying 34.35% higher in the last buy than the previous buys because the BOA guaranteed NGC a 17.25% profit; b) by allowing EPA as part of the negotiations strategy if there are high risk materials, if this is in the best interest of the USAF, and by soliciting and requesting prices closer to the required delivery date than it was on the previous buy. If it is determined that providing EPA is justified per the FAR and in the best interest of the USG, the PCO will write a D&F before contract award.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

A sources sought synopsis was posted for 33 days on SAM.gov to seek new sources that resulted in only NGC responding. In addition, the T-38 engineer conducted a technical market research and determined that no commercial item can meet the USAF requirement, even when modified and therefore, determined that the T-38 wingtips are non-commercial. In addition, the engineer determined that there are no negative impact to the environment while producing the T-38 wingtips.

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VIII. Any other facts supporting the use of Other Than Full and Open Competition.

Attached is the current AFMC Form 761, AMC/AMSC Screening Analysis Worksheet (SAW) for both the RH and LH wingtips. The forms show that both wingtips are assigned Acquisition Method Suffix Code "R", "The Government does not own the data or the rights to the data needed to purchase this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture this item, AMCs 3, 4, or 5 are valid." Further, Acquisition Method Code (AMC) 3 is assigned to both wingtips, "Acquire, for the second or subsequent time, directly from the actual manufacturer." According to the NSN history for both wingtips, these are the codes that have been assigned to the wingtips since the initial purchase over 15 years ago.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

None other than NGC.

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The T-38 wing upgrade is nearly complete and this is the last purchase for the T-38 wingtips. Because of this, it is not in the best interest of the USG to purchase the drawings even if NGC was willing to.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

☒ Remove the Guidance pages below.